



Mallaig Harbour Order Confirmation Act 1975

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ELIZABETH II



1975 CHAPTER xxxiii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Mallaig Harbour. [12th November 1975]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Mallaig Harbour Order Short title.
Confirmation Act 1975.

SCHEDULE

MALLAIG HARBOUR

Provisional Order to authorise the Mallaig Harbour Authority to carry out works for the improvement of the harbour of Mallaig and to borrow money; and for other purposes.

Whereas by the Mallaig Harbour Revision Order 1968 (hereinafter referred to as "the Order of 1968") the Mallaig Harbour Authority (hereinafter referred to as "the Authority") was constituted for the purposes of improving, maintaining and managing the harbour undertaking as therein defined:

And whereas by the Mallaig Harbour Order 1973 the Authority were authorised to construct works for an extension to the steamer pier partly for use in connection with a roll-on and roll-off ferry and partly to provide a breakwater and for a widening of the said pier to accommodate an approach ramp and an adjustable steel link bridge:

And whereas further consideration has been given to the development and improvement of the harbour and it is expedient that the works authorised by the Mallaig Harbour Order 1973 should be abandoned and that the Authority should be authorised to carry out the works hereinafter described for the improvement of the harbour and to borrow money for the purposes of the said works and of the said harbour undertaking:

And whereas it is expedient that the further powers mentioned in this Order should be conferred on the Authority:

And whereas estimates have been prepared by the Authority in relation to the following purposes in respect of which they are to be authorised to borrow money and such estimates are as follows:—

	£
Construction of an extension to the existing steamer pier in open construction	855,000
Construction of rock embankment from the steamer pier to the north corner of the outer point area, reclamation and infilling	615,000
Construction of concrete sea wall from the north corner of the outer point area running westerly, then southerly, then easterly for a distance of 213.3 metres (700 feet) or thereby with reclamation and infilling	745,000
An extension of the concrete sea wall in a southerly direction for a distance of 161.5 metres (530 feet) or thereby with reclamation and infilling ...	650,000
Construction of an approach ramp and adjustable steel link bridge with all necessary lifting gear and a widening of the steamer pier	415,000
Construction of two new piers of solid construction	4,900,000
General dredging works	350,000
	£8,530,000

Work No. 4 An extension of Work No. 3 commencing at the south-western corner of Work No. 3 and extending in a southerly direction for a distance of 161.5 metres (530 feet) or thereby to meet the projecting point of existing land above the high-water mark and there terminating together with the reclamation by infilling and surfacing the area enclosed between the said work, Work No. 3 and the existing land above the high-water mark.

Work No. 5 A widening of the north-west face of the existing steamer pier by 7.6 metres (25 feet) or thereby to seaward from the present face line in open steel and concrete construction with reinforced concrete deck commencing at a point 54.8 metres (180 feet) or thereby along the north-west face of the steamer pier measured from its commencement on the line of high water and terminating at a point 67 metres (220 feet) or thereby from the point of commencement ramping down to meet the hinge point of Work No. 6.

Work No. 6 An adjustable steel link bridge commencing at a width of 4.6 metres (15 feet) or thereby at the termination of Work No. 5 by a hinged connection with that work and extending east-north-eastwards for a distance of 36.9 metres (121 feet) or thereby and to a width of 6.7 metres (22 feet) or thereby to form a link between any ferry ship and the fixed ramp at the end of Work No. 5 including all machinery for lifting and lowering the end adjoining the ferry ship.

Work No. 7 Fixed structures of reinforced concrete construction for guiding the adjustable end of the link bridge Work No. 6 and supporting the jacks for lifting and lowering the link bridge commencing at a point on the north-west face of the extension to the steamer pier Work No. 1 and 30.5 metres (100 feet) or thereby in a straight line from the commencement thereof and terminating at a point 26.2 metres (86 feet) or thereby in a north-westerly direction from the point of commencement and consisting of an extension by a length of 6.1 metres (20 feet) or thereby and a width of 6.1 metres (20 feet) or thereby of the north-west face of the said Work No. 1 and on the north-west side of the link bridge a dolphin of 10.7 metres (35 feet) or thereby in length and 10.7 metres (35 feet) or thereby in width.

Work No. 8 A fixed pier or breakwater of solid steel sheet piled rock filled construction commencing at a point at the top of the seaward slope of Work No. 2 106.6 metres (350 feet) or thereby north-west of the north-west face line of the steamer pier and extending in a north-easterly direction for a distance of 210.3 metres (690 feet) or thereby and there terminating having a top width of 15.2 metres (50 feet) or thereby.

Work No. 9 A fixed breakwater of solid steel sheet piled rock filled construction having a top width of 15.2 metres (50 feet) or thereby commencing at the north corner of Work No. 3 and extending in a north-north-easterly direction for a distance of 286.5 metres (940 feet) or thereby to the southernmost

point of the rocks named Sgeir Dhearg thence in an easterly direction for a distance of 82·3 metres (270 feet) or thereby and there terminating.

Work No. 10 An extension of Work No. 9 commencing from the point where Work No. 9 changes direction from north-east to east, at the south end of Sgeir Dhearg rocks, in a northerly direction for a distance of 73·2 metres (240 feet) or thereby and thence in an easterly direction for a distance of 64·0 metres (210 feet) or thereby and there terminating.

(2) The Authority may within the limits of deviation renew, enlarge and alter temporarily or permanently the works.

(3) The works shall be deemed for all purposes to be within the parish of Glenelg and within the Highland Region and the district of Lochaber.

Incorporation
of provisions
of Order of
1970.

5. The following provisions of the Order of 1970 are incorporated with and shall with all necessary modification form part of this Order:—

Section 4 (Subsidiary works):

Provided that for the purposes of this Order the said section as incorporated shall be deemed to include the provision of loading ramps:

Section 5 (Power to deviate):

Section 6 (Application of article 3 (1) of Order of 1968):

Section 8 (Temporary closure of harbour):

Section 9 (Removal of vessels from harbour):

Section 10 (Fine for obstructing work):

Section 11 (Tidal works not to be executed without approval of Board of Trade):

Section 12 (Survey of tidal works):

Section 13 (Provision against danger to navigation):

Section 14 (Abatement of works abandoned or decayed):

Section 15 (Lights on tidal works during construction):

Section 16 (Permanent lights on tidal works):

Section 18 (Works to form part of undertaking and application of byelaws) except subsection (3) thereof:

Provided that for references in any of the said sections to “the Board of Trade” there shall be substituted references to “the Secretary of State”.

Application of
section 7 of
Act of 1937.
1972 c. 29.

6. The provisions of section 7 of the Act of 1937, as amended by the Harbours, Piers and Ferries (Scotland) Act 1972, shall apply to the harbour together with the works authorised to be carried out by this Order as if it were a marine work to which Part III of the Act of 1937 applied.

Power to
borrow money
for purposes
of Order.

7.—(1) In addition to any existing powers of borrowing which they may have by virtue of the terms of any enactment the Authority may

borrow for the purposes of this Order a sum not exceeding four hundred and sixty thousand pounds and with the sanction of the Secretary of State such further sum or sums as may from time to time be required for the purposes of the undertaking.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Order except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

8.—(1) Nothing in this Order shall extend to or authorise any For interference with any electric lines or other works of the North of Scotland Hydro-Electric Board (in this section referred to as “the Board”) except in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and section 17 of the Schedule to the Electric Lighting (Clauses) Act 1899, and such provisions shall be deemed for the purposes of this section to extend to and include any electric line or work of the Board whether or not such line or work is under any street or place authorised to be broken up by the Board and whether such line or work is placed below, upon or above the level of the ground.

protection
of North of
Scotland
Hydro-Electric
Board.
1882 c. 56.
1899 c. 19.

(2) In this section the expressions “electric lines” and “works” have the same respective meanings as in the Electricity (Supply) Acts 1882 to 1936.

9. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Authority to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any channel, river, creek, bay or estuary or any land, heritages, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of such Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

10. Nothing in this Order shall affect the operation of the Dumping at Sea Act 1974.

Saving for
Dumping at
Sea Act 1974.
1974 c. 20.

11.—(1) Section 274 of the Town and Country Planning (Scotland) Act 1972 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of Parliament held during the regnal year 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Order as if it had been passed during that session; and accordingly the Town and Country Planning (Scotland) Act 1972 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Order.

Saving for
Town and
Country
Planning Acts.
1972 c. 52.

(2) In their application to development authorised by this Order, article 3 of, and class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 (which permit

development authorised by any local or private Act or by any Order approved by both Houses of Parliament, being an Act or Order designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Order were limited to development begun within five years after the passing of the Act confirming this Order.

(3) In this section the reference to article 3 of, and class X in, Schedule 1 to the Town and Country Planning (General Development) (Scotland) Order 1975 includes a reference to corresponding provisions of any general order superseding that Order made under section 21 of the Town and Country Planning (Scotland) Act 1972 or any corresponding provision of an Act repealing that section.

Costs of Order. 12. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Authority.

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